

**WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator**

**Appellant's conference paper** | Second conference under section 552A of the *Industrial Relations Act 2016* | Provided to the Respondent, and a copy to the Commission, on 1 October 2026

This paper is provided to the Respondent, and a copy to the Commission, for the purposes of the second conference and of the Commission's consideration of how the matter should proceed. It contains no submission. It sets out the admitted record for each stressor as a whole, with the questions arising from the Respondent's outlines of evidence of 24 September 2026. The Appellant asks the Respondent to indicate, by 15 October 2026, its position on each question (using the response schedule at section 7) and its settled position on each action listed in section 6. Fact numbers are those of the Appellant's notice to admit facts of 28 August 2026, as answered by the Respondent on 8 September 2026. Tab numbers are those of Annexure A to that notice. "SOFC" is the Respondent's amended statement of facts and contentions dated 13 May 2026.

**1. What is settled**

The Respondent admitted 298 of the 303 facts. The other five were not admitted, and none was denied. 29 of the 39 documents annexed to the notices are admitted or confirmed. No admission has been withdrawn. The Respondent has served outlines of evidence for four lay witnesses and no medical or expert evidence.

**2. What can be closed at this conference**

|   | Matter                                                                                       | What would close it                                                                                                                                                                                                                                                                                                 |
|---|----------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| A | The ten documents not yet admitted or confirmed (Tabs 1, 5, 17 to 19, 21, 22, 23, 24 and 31) | An agreed list of documents to be tendered without further proof: the nine held by Metro South Health once it provides its copies; Tab 24 (the Together Queensland email of 3 November 2025) by agreement or through Ms Conaghan, a recipient of it. The contents of all of them except Tab 31 are already admitted |
| B | Facts 228 to 231: the 2024 Emergency Code Register entries for 17 to 19 March 2024           | Production of the MET call spreadsheet that Metro South Health, in its letter of 5 June 2026, states "is available for the period 17-18 March 2024" (fact 268)                                                                                                                                                      |
| C | The medical evidence                                                                         | The Respondent to indicate whether it requires Dr Krishnaiah and Dr Hawes to attend for cross-examination                                                                                                                                                                                                           |
| D | SOFC [27]: the management action said to be reasonable                                       | The Respondent to state its settled position on each admitted action listed in section 6. Fact 303 admits that SOFC [27] does not identify them                                                                                                                                                                     |
| E | Documents referred to in the Respondent's outlines of evidence                               | Production, to the extent not already disclosed, including the Technical Support advice referred to by Ms Wright, the email of 15 May 2024 at 4:12 pm referred to by Ms Reese, and the Human Resources advice on which Ms Taylor and Ms Reese say they acted                                                        |

**3. Stressor 1: the workplace, as a whole**

Stressor 1 is set out below in its parts, (a) to (g). Where a passage in the Respondent's outlines sits beside a fact the Respondent has admitted, a question follows. None of the outlines addresses the Appellant's database and emergency response duties, the reports of the MASPER Registrar or the Integrated Respiratory Service, or the restrictions on access to the database.

**3.1 Stressor 1(a): the Appellant's duties**

| Duty (role description, Administration Officer, Switchboard Services, Tab 1)                                                                                                                            | Fact  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------|
| "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate"                                                 | 6     |
| "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups... strictly adhering to protocols and timeframes" | 8     |
| Pager allocation and repair, "maintaining database and registers with accurate and current information"                                                                                                 | 7     |
| "Maintain call queues to minimum at all times"                                                                                                                                                          | 5     |
| "Maintain discretion and exercise judgement... in situations where precedence have not been set and procedures not defined"                                                                             | 9     |
| "Follow defined service quality standards, occupational health and safety policies and procedures"                                                                                                      | 12    |
| Continuous shift work "over the full 24-hour period, 7 days a week"                                                                                                                                     | 2, 13 |

### 3.2 Stressor 1(a): the doctors' reports of misrouted calls, and the response

| When             | What the admitted record shows                                                                                                                                                                              | Facts      | Interval                                                                |
|------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-------------------------------------------------------------------------|
| 2 and 3 May 2024 | Five misrouted calls (2 May 14:47; 3 May 10:00, 10:22, 11:43, 14:46), including a MET call: "switchboard could not tell them where VHUB was. Had to be redirected by MASPER"                                | 57, 58     |                                                                         |
| 3 May, 3:06 pm   | Vivian Kwok, MASPER Registrar, reports them to Ms Taylor, copied to Dr Pan Jane Wong: "I've been requested to email you with the list of switchboard issues"                                                | 56         | First report                                                            |
| 5 to 8 May       | Four further occasions (5 May 14:45; 7 May 07:45; 8 May 8:53, 9:59); on 8 May each call "incorrectly put through to MASPER"                                                                                 | 60, 61     |                                                                         |
| 8 May, 5:28 pm   | Second report to Ms Taylor, copied to Dr Wong                                                                                                                                                               | 59, 62     | Fifth calendar day                                                      |
| 9 May, 9:20 am   | Ms Taylor replies to the Registrar and Dr Wong                                                                                                                                                              | 63 to 65   | 5 days 18 h 14 min after the first report                               |
| 9 May, 10:15 am  | First communication to Switchboard staff ("MASPER process"): "There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams" | 66, 67, 69 | None alleged before this                                                |
|                  | Every occasion occurred while the after-hours arrangement of 15 April 2024 was in force                                                                                                                     | 68         |                                                                         |
| 15 May, 11:47 am | Integrated Respiratory Service asks for the directory to be amended                                                                                                                                         | 89, 90     | No response alleged before 20 May                                       |
| 20 May, 11:03 am | Reminder: "we continue to get calls put through to us"                                                                                                                                                      | 91 to 93   | Fifth day; no response alleged before 2:05 pm                           |
| 20 May, 2:05 pm  | The Appellant escalates to Ms Taylor, within her stated office hours                                                                                                                                        | 94 to 98   | 3 h 2 min after the reminder; 5 days 2 h 18 min after the first request |
| 20 May, 4:30 pm  | Ms Taylor: "this task was being actioned"                                                                                                                                                                   | 100 to 104 | 2 h 25 min later; 2 h after her stated hours                            |
|                  | No document of that discussion is listed. The directory is not alleged to have been amended by 20 May, nor staff notified of its modification on 22 February 2024                                           | 105 to 110 |                                                                         |

### 3.3 Stressor 1(a): the restrictions on access to the database and on after-hours changes

| When                  | What the admitted record shows                                                                                                                                           | Facts    |
|-----------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|
| 18 Jul 2023, 12:56 pm | Database access removed from all Switchboard staff while the coordinator fixes the database: "I will be removing everyone's access to the database"                      | 39, 40   |
| 18 Jul 2023           | The "Contact & Number Changes" book removed from the room                                                                                                                | 45       |
| From 18 Jul 2023      | Changes only through Ms Stibbard, whose hours were "every Tuesday and second Monday, 8:00 - 16:00", or through Ms Taylor if Ms Stibbard was absent and the change urgent | 41 to 43 |
| From 18 Jul 2023      | After hours ("overnights, on the weekend or public holiday"), requests "have to wait until either Chloe or myself are back"                                              | 44       |
| 15 Apr 2024, 12:39 pm | New after-hours on-call process, "effective from today"; during office hours, contact Ms Taylor                                                                          | 49 to 52 |
| To 18 Jun 2024        | The Respondent does not allege that database access was restored to the Appellant                                                                                        | 55       |

|   | Question for the Respondent                                                                                                                                                    | The admitted record                                                                                                                                                                                                                                                                                                                                                                                         |
|---|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | Does the Respondent maintain that no directives were issued without consultation or assessment (SOFC [11]; outline of Ms Taylor)?                                              | Ms Taylor's email of 15 April 2024: "This new process is effective from today" (facts 49 to 53; Tab 6, confirmed 24 September 2026). A further new process from 19 April 2024 (fact 54). No clause 6.2 agreement or ballot is alleged (facts 180, 181). The Chief Executive's letter of 5 June 2026: fatigue risk assessment at the switchboard "occurred after 30 June 2024" (fact 264; Tab 20, confirmed) |
| 2 | Does the Respondent maintain its non-admission of Stressor 1(a) (SOFC [11])?                                                                                                   | Sections 3.1 to 3.3, every entry admitted. The duties to maintain the database (fact 6) and to distribute emergency notifications "strictly adhering to protocols and timeframes" (fact 8) fell to be performed after database access was removed on 18 July 2023 (fact 40), and the Respondent does not allege it was restored (fact 55)                                                                   |
| 3 | What action does the Respondent say was taken on the reports of 3, 8, 15 and 20 May 2024 before the Appellant's email of 20 May 2024 at 2:05 pm, and what document records it? | No communication to staff is alleged before 9 May at 10:15 am (fact 69). No response to either Integrated Respiratory Service email is alleged before the Appellant's escalation (facts 90, 93). No document of the 20 May discussion is listed (fact 105)                                                                                                                                                  |
| 4 | Does the Respondent rely on Metro South Health's statement that there were "no 'consequential' changes to operating procedures" (fact 266)?                                    | New processes of 15 April (facts 49 to 53), 19 April (fact 54) and 9 May 2024 (fact 66). Complaints were "managed solely via email or verbally" (fact 267)                                                                                                                                                                                                                                                  |

### 3.4 Stressor 1(b): the Communication Book

| When                | What the admitted record shows                                                                                                                                                                        | Facts      |
|---------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
| 6 Jun 2023, 9:57 am | Ms Taylor to Logan Switch: the Communication Book "is not used to simply put your point across or make any indirect comments towards the team"                                                        | 148, 149   |
| 6 Jun 2023, 4:05 pm | Ms Taylor to Ms Reese: "I was not aware of who put this entry in at the time but I took it out... as it was clearly an indirect dig at the team"; "I just feel like it's being used as a 'burn book'" | 145 to 147 |
| Pleading            | The Respondent admits Ms Taylor removed pages from the Communication Book on or around 6 June 2023                                                                                                    | 143, 288   |
| The book            | The removed entry is not identified, and it is not alleged that the page has been located or that a copy exists. The book is not alleged to have left Metro South Health's possession                 | 150 to 153 |

|   | Question for the Respondent                                                                             | The admitted record                                                                                                                                                                                     |
|---|---------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 5 | Where is the Communication Book, and will the Respondent produce it, including the pages for June 2023? | The book is not alleged to have left Metro South Health's possession during the Appellant's employment (fact 153). The Respondent does not admit that its amended List of Documents omits it (fact 154) |

### 3.5 Stressor 1(c): the matters raised in August and September 2023

| When                 | What the admitted record shows                                                                                                                                                                  | Facts       |
|----------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|
| 7 Aug 2023, 12:21 pm | The Appellant emails Ms Taylor, Ms Reese, Ms Conaghan and Ms Smith about his hours and workplace issues, citing clause 11.7 (additional permanent hours), and asks: "Please give me some space" | 26, 27, 155 |
| 7 Aug 2023, 1:43 pm  | Ms Taylor: his rostered Monday shift "was an oversight"; she offers to roster him off the next day "to give you the required rest period"                                                       | 156, 157    |
| 7 Aug 2023, 3:13 pm  | Ms Reese: "you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc."                                                                         | 158         |
| 29 Aug to 4 Sep 2023 | Ms Reese sends the grievance policy (E12). The Appellant replies that he has spoken to Ms Taylor and they are "seemingly on the path to working in a beneficial way"                            | 160, 161    |

### 3.6 Stressor 1(d): the Special Pandemic Leave application, as one sequence

| When                      | What the admitted record shows                                                                                                                                                                                                                                                                                    | Facts              | Interval                                       |
|---------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|------------------------------------------------|
| 20 Feb 2024               | <b>Request 1.</b> The Appellant tells Ms Taylor he has tested positive for Covid; she asks him to send it to her "so she could submit it in MyHR". The Respondent pleads that Ms Taylor asked him to submit a Special Pandemic Leave request through myHR, attaching a statutory declaration or photo of his test | 136; 132           |                                                |
| 20 Feb, 11:24 to 11:41 am | <b>Request 2 (myHR submission 1).</b> Draft created and submitted, with the supporting attachment                                                                                                                                                                                                                 | 114, 115; 134      |                                                |
| 21 Feb, 12:23 pm          | Ms Taylor, as "Reviewer", declines it. Her message: the minimum period for Covid leave was 5 days; the statutory declaration "was sufficient evidence"; resubmit                                                                                                                                                  | 116, 137, 138      | 1 day 42 min after submission                  |
| 28 Feb, 6:07 am           | <b>Request 3 (myHR submission 2).</b> The Appellant resubmits                                                                                                                                                                                                                                                     | 117                | 6 days 17 h 44 min after the first decline     |
| 29 Feb, 9:06 am           | Ms Taylor declines it again, on her assessment that the statutory declaration was not attached. A review shows the attachments were present. The Appellant messages that he is confused and did everything as required                                                                                            | 118, 133, 134, 139 | 1 day 2 h 59 min after resubmission            |
| 29 Feb, 11:07 am          | <b>Request 4 (myHR submission 3).</b> The Appellant resubmits                                                                                                                                                                                                                                                     | 119                | 2 h 1 min after the second decline             |
| 29 Feb, 11:21 am          | Ms Taylor approves it as "Reviewer"                                                                                                                                                                                                                                                                               | 120, 124           | 13 min 35 s after resubmission                 |
| 1 Mar 2024, 4:05 pm       | Ms Reese approves it as "Manager"                                                                                                                                                                                                                                                                                 | 121                | 1 day 4 h 44 min later                         |
| Overall                   | Four requests, three myHR submissions, two declines by Ms Taylor, then approval                                                                                                                                                                                                                                   | 122, 123, 125      | 10 days 4 h 40 min 20 s from draft to approval |
| The power                 | Sub-delegated to a Band 9 delegate, with no further sub-delegation. Neither Ms Taylor nor Ms Reese is alleged to have held it; the person who exercised it is not identified                                                                                                                                      | 127 to 131         |                                                |
| Others                    | No other Switchboard employee is alleged to have been required to submit a Special Pandemic Leave request personally through myHR in February 2024                                                                                                                                                                | 142                |                                                |
| The Respondent's case     | The second decline was "a matter of human error by Ms Taylor on the background of high work demands" (SOFC [14(f)])                                                                                                                                                                                               | 135                |                                                |

|   | Question for the Respondent                                                                                                                                               | The admitted record                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|---|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 6 | Who exercised the delegated power to decide the Special Pandemic Leave application, process 15480560?                                                                     | SOFC [14] states the attachments were present. Ms Taylor had noted the statutory declaration "was sufficient evidence" (fact 138) and declined the application twice (facts 116, 118, 123). It was approved by Ms Taylor as reviewer on 29 February and Ms Reese as manager on 1 March 2024 (facts 120, 121). The power was sub-delegated to Band 9 and could not be sub-delegated further (facts 127, 128); it is not alleged that Ms Taylor or Ms Reese held it (facts 129 to 131)                                                    |
| 7 | Does the Respondent maintain that the handling of the application from 20 February to 1 March 2024, taken as a whole, was not unreasonable management action (SOFC [14])? | Four requests and three myHR submissions of the same application. Two declines, the second on the ground that the statutory declaration was not attached; the Respondent pleads that the attachments were present (fact 134), and Ms Taylor had already said the statutory declaration was sufficient (fact 138). The third submission was approved in 13 minutes 35 seconds (fact 124). The whole took 10 days 4 hours 40 minutes (fact 125). The power was not alleged to be held by either person who acted on it (facts 127 to 131) |

### 3.7 Stressor 1(e): the public interest disclosure

The Respondent admits Stressor 1(e) (SOFC [15]).

### 3.8 Stressor 1(f): the email of 15 May 2024 and the request to retract it, in context

| When                                                                 | What the admitted record shows                                                                                                                                                                                                                                                                                                                                                | Facts        | Interval                                  |
|----------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|-------------------------------------------|
| <b>The directions</b>                                                |                                                                                                                                                                                                                                                                                                                                                                               |              |                                           |
| 18 Jul 2023                                                          | Urgent database changes to go to Ms Taylor when Ms Stibbard is absent; after hours, requests "have to wait until either Chloe or myself are back"                                                                                                                                                                                                                             | 43, 44       |                                           |
| 23 Aug 2023                                                          | Ms Taylor, "What's Chloe's Hours?!": "I am fulltime and work flex hours"; "My hours would range from starting between 6-9am and finishing 2-5pm". No fixed hours are alleged to have been stated to staff from then until May 2024                                                                                                                                            | 71 to 73     |                                           |
| 15 Apr 2024                                                          | Ms Taylor: "Process during office hours remains the same, please contact myself through switch/office or mobile"                                                                                                                                                                                                                                                              | 50, 163      |                                           |
| 13 May 2024                                                          | Ms Stibbard: "During business hours you are to still contact Chloe"                                                                                                                                                                                                                                                                                                           | 111          |                                           |
| 14 May, 12:08 pm                                                     | Ms Taylor: "in business hours you are to follow the correct process and speak to me directly... through switch or my office/mobile"                                                                                                                                                                                                                                           | 162, 164     |                                           |
| <b>What an emergency call is, and the calls then being misrouted</b> |                                                                                                                                                                                                                                                                                                                                                                               |              |                                           |
| The duty                                                             | Distributing emergency notifications to the response groups "strictly adhering to protocols and timeframes". Maintaining accurate contact details for medical staff is "a critical function of the Switchboard to ensure effective clinical handover and patient safety" (the Respondent adds that a procedure was in place)                                                  | 8, 289, 290  |                                           |
| 2 to 8 May 2024                                                      | Nine misrouted calls reported by the MASPER Registrar, including a MET call: "switchboard could not tell them where VHUB was. Had to be redirected by MASPER"                                                                                                                                                                                                                 | 56 to 61     |                                           |
| 9 May, 9:20 am                                                       | Ms Taylor replies to the Registrar                                                                                                                                                                                                                                                                                                                                            | 64           | 5 days 18 h 14 min after the first report |
| 15 May, 11:47 am                                                     | The Integrated Respiratory Service asks for the directory to be amended                                                                                                                                                                                                                                                                                                       | 89, 90       | No response alleged before 20 May         |
| <b>The email, and the request to retract it</b>                      |                                                                                                                                                                                                                                                                                                                                                                               |              |                                           |
| 15 May, 1:15 pm                                                      | The Appellant, "Office Hours and Departmental Directives", to Ms Taylor and Logan Switch, copied to staff, Ms Reese and HR: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times"; and that directives be made in consultation with the team | 74, 75       |                                           |
| 15 May, 6:23 pm                                                      | Ms Reese: the email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct"; she asks him to retract it                                                                                                                                                                                                                                 | 76, 77       | 5 h 8 min later                           |
| 15 May, 7:09 pm                                                      | The Appellant: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours"                                                                                                                                                       | 78           |                                           |
| <b>What followed</b>                                                 |                                                                                                                                                                                                                                                                                                                                                                               |              |                                           |
| 17 May, 9:30 am                                                      | Ms Taylor: her hours "can vary"; "Otherwise my hours are from 06:30-14:30"; she will advise any change weekly                                                                                                                                                                                                                                                                 | 81 to 84, 88 | 2 days after the email                    |
| 20 May, 2:05 to 4:30 pm                                              | The Appellant escalates the Respiratory Service misroutes within Ms Taylor's stated hours; she replies two hours after those hours ended                                                                                                                                                                                                                                      | 96, 102, 103 |                                           |
| 21 May, 2:53 pm                                                      | Ms Reese: "I will follow up on the issues raised"; she asks which directives concerned him                                                                                                                                                                                                                                                                                    | 79, 80       |                                           |
| 18 Jun, 8:58 am                                                      | Ms Taylor: "I am taking today off"; "I am sorry I haven't been there for you all over the past week"; "Tammy is in the office if anything urgent"                                                                                                                                                                                                                             | 85 to 87     |                                           |

|   | Question for the Respondent                                                                                                                                  | The admitted record                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|---|--------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 8 | Does the Respondent maintain that on 13 to 15 May 2024 the Appellant failed to follow the on-call notification process (SOFC [16(b)]; outline of Ms Taylor)? | Ms Taylor's email of 15 April 2024: contact her "through switch/office or mobile" (facts 50, 163). Her email of 14 May 2024: "either through switch or my office/mobile" (facts 164, 165). It is not alleged that the Appellant was told, before 14 May 2024, that notifying his unavailability by telephoning the Switchboard did not comply (fact 166)                                                                                                                                                                                                           |
| 9 | Does the Respondent maintain that the Appellant's email of 15 May 2024 was an accusation (outline of Ms Reese)?                                              | The Appellant was directed to contact Ms Taylor during office hours (facts 50, 111, 162), and her own email said her hours ranged from a 6 to 9am start to a 2 to 5pm finish (facts 71, 72), with no fixed hours stated to May 2024 (fact 73). The request came while emergency and clinical calls were being misrouted (facts 56 to 61, 89) in a function admitted to be critical to patient safety (fact 289). Ms Reese, 21 May 2024: "I will follow up on the issues raised" (fact 79). Ms Taylor published her hours two days after the email (facts 81 to 84) |

### 3.9 Stressor 1(g): the union delegate role

| When                                            | What the admitted record shows                                                                                                                                                    | Facts    |
|-------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|
| 31 Aug 2023                                     | The Appellant's written application for full-time hours records his "advocacy to become a union representative for the switchboard department"                                    | 30 to 32 |
| 5:03 pm text (date not stated in the admission) | The Respondent admits the Appellant texted Ms Taylor that he was "just putting his hand up"; it says this was not a formal notification                                           | 294      |
| Policy                                          | The Union Encouragement Policy requires managers to take a "positive, supportive role" to facilitate union membership and delegate elections (admitted as "words to that effect") | 293      |
| 3 Nov 2025                                      | The Appellant is endorsed as a workplace delegate                                                                                                                                 | 178, 179 |

## 4. Stressor 2: pay, as a whole

### 4.1 Stressor 2(a): entitlements

| When            | What the admitted record shows                                                                                                                                                                                              | Facts      |
|-----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
| Award           | Section 23 of the Award: an employee rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day "shall be paid an additional day's wage or be granted a day's holiday in lieu" (as recorded by the Review Unit) | 241        |
| 1 May 2024      | Payroll "still reviewing" his public holiday entitlements from his part-time period; Ms Taylor confirms that since full-time employment all "public holidays not required" payments had been processed                      | 255, 256   |
| Feb to Apr 2024 | Payroll records shift and hours errors across four fortnights (see 4.2)                                                                                                                                                     | 185 to 189 |

### 4.2 Stressor 2(b): the pay corrections and the AVAC, as one sequence

| When                       | What the admitted record shows                                                                                                                                                                                                                                                                                                                          | Facts           | Interval                                                 |
|----------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|----------------------------------------------------------|
| Fortnights from 5 Feb 2024 | Payroll records: a 7-hour shift on 9 February instead of 8 (AVAC PRN 15397775) and on 28 February (AVAC PRN 15605601), each topped up from his RDO balance; the fortnight of 18 March "has too many ordinary shifts... resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime"; the fortnight of 1 April the same, 0.95 hours | 185 to 189      |                                                          |
| 8 Apr 2024                 | The Appellant asks Ms Taylor to review his pay for 8 to 31 March 2024                                                                                                                                                                                                                                                                                   | 242             | First request                                            |
| 1 May 2024                 | Payroll is "still reviewing" his public holiday entitlements from his part-time period                                                                                                                                                                                                                                                                  | 255             |                                                          |
| 3 May 2024                 | Payroll (Ms Grant) to Ms Taylor, copied to the Appellant: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended"                                                                                                                                                         | 183 to 190, 296 | 25 days after the request                                |
| 10 May, 2:21 pm            | The Appellant writes to payroll                                                                                                                                                                                                                                                                                                                         | 191             |                                                          |
| 13 May, 8:21 am            | Payroll: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC"                                                                                                                                                                                                         | 192, 193        | 10 days after the instruction                            |
| 21 May, 12:33 pm           | Ms Taylor: "still... waiting payroll confirmation about a few of these payroll issues"; she will submit an AVAC "for next pay run"                                                                                                                                                                                                                      | 194, 195, 298   | 18 days after the instruction                            |
| 28 May, 8:36 am            | Ms Taylor asks him to sign a "Validation of claims older than 3 months" so she can "escalate for delegate approval"                                                                                                                                                                                                                                     | 196, 197        |                                                          |
| 28 May 2024                | Ms Taylor submits the AVAC (16450619), effective 30 March 2024; processed 30 May; status "Part Completed"                                                                                                                                                                                                                                               | 203, 209, 297   | 25 days after the instruction; 50 days after the request |
| Feb to May 2024            | All five AVACs in the period were initiated by Ms Taylor; none by the Appellant. AVAC PRNs 15397775 and 15605601, cited by payroll, do not appear in the myHR report                                                                                                                                                                                    | 199 to 201, 210 |                                                          |
| The Respondent's case      | Discrepancies "remedied in a timely manner"; "no outstanding underpayments"; Ms Taylor "submitted the AVAC on 28 May 2024" (SOFC [20(c)], [20(f)], [21(c)])                                                                                                                                                                                             | 207 to 209      |                                                          |

|    | Question for the Respondent                                                                                                                                                    | The admitted record                                                                                                                                                                                                                                                                                                                                                                            |
|----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 10 | Does the Respondent maintain that pay errors were "remedied in a timely manner" and that there are no outstanding underpayments (SOFC [20(c)], [20(f)]; outline of Ms Wright)? | Payroll asked the line manager for AVACs on 3 May 2024 (facts 183 to 190). On 13 May payroll could not see that any had been corrected (facts 192, 193). The AVAC was submitted on 28 May 2024 (fact 297), with claims "older than 3 months" (fact 197), and is recorded as "Part Completed" (fact 203). Two AVAC process numbers cited by payroll do not appear in the myHR report (fact 210) |

|    | Question for the Respondent                                                                                                                            | The admitted record                                                                                                                                                                                                                                                                                                                                                                                         |
|----|--------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 11 | Does the Respondent maintain that the handling of the pay corrections from 8 April to 28 May 2024, taken as a whole, was reasonable (SOFC [20], [21])? | The request of 8 April (fact 242); payroll's instruction to the line manager on 3 May (facts 183 to 190); nothing corrected by 13 May (fact 193); the AVAC submitted on 28 May, 25 days after the instruction and 50 days after the request (fact 297), with claims "older than 3 months" (fact 197), and recorded as "Part Completed" (fact 203). Only the line manager initiated AVACs (facts 199 to 201) |

## 5. Stressor 3: the break of 17 to 18 March 2024, as a whole

The seven-hour break is admitted by both parties (facts 226, 284). The sequence around it, from the agreement relied on to the response to the Appellant's request, is set out below. The emergency codes are shown from Tab 31, the Appellant's capture of Metro South Health's "2024 Emergency Code Register". Facts 228 to 230 are not admitted; Metro South Health states that the MET call spreadsheet for 17 and 18 March 2024 is available (fact 268), and its production would settle them. The entries on the Appellant's address, the drive and the roadworks are the Appellant's material, offered for context only and not part of the admitted record; the address is taken from pay advices in the Respondent's own disclosure.

### 5.1 The rule and the agreement

| When            | What the admitted record shows                                                                                                                                            | Facts      |
|-----------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
| Standing rule   | The Award and the employer's policy require a minimum break of 10 hours between shifts, or 8 hours by written agreement                                                   | 285, 257   |
| 17 Jun 2020     | The Appellant signs an agreement allowing an 8-hour break                                                                                                                 | 17         |
| Jun 2020        | The fatigue leave policy: problems "can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day" | 239, 240   |
| Sep to Oct 2023 | The Appellant moves to permanent full-time hours from 16 October 2023; the employer confirms a "change to your employment contract and adjustments in your working hours" | 37, 38, 20 |
| To 18 Mar 2024  | No review, re-execution or re-confirmation of the agreement is alleged; nor that he was told, before 1 May 2024, that it could be terminated                              | 21, 22     |
| 7 Jul 2026      | Metro South Health Human Resources: the agreement "is only applied where staff initiated shift swaps have occurred". No swap is alleged for 17 and 18 March 2024          | 225, 234   |

### 5.2 The shift pairing, the emergency calls, and the travel between shifts

| When                                               | What the record shows                                                                                                                                                                                                                                                                                                                                                | Facts                                            |
|----------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------|
| 17 Mar 2024 (Sunday)                               | Rostered to finish at 23:00. No clause 6.2 agreement is alleged for this rostering                                                                                                                                                                                                                                                                                   | 284, 180                                         |
| 17 Mar 2024 (the day of the shift ending at 23:00) | The Emergency Code Register records eight codes: 03:57 CODE GREY ED LOUNGE; 05:19 MET CALL WARD 5A BED 27; 07:48 ED CODE GREY CORRIDOR NEAR SHORT STAY; 13:48 MET CALL WARD 3B BED 2; 14:13 CODE GREY ED ADULT ACUTE BED 15; <b>19:16 MET CALL WARD 2H BED 7; 19:20 CODE BLUE WARD 2H BED 7; 21:16 MET CALL WARD 2Q BED 5</b>                                        | 228 (not admitted); Tab 31; 268                  |
| 18 Mar 2024 (Monday)                               | Rostered to start at 06:00. A break of 7 hours. Leaving up to 30 minutes early would still not give 8 hours                                                                                                                                                                                                                                                          | 284, 227, 258, 259                               |
| 18 Mar, 06:00 to 14:00                             | Six codes: 08:48 CODE GREY QAS TRIAGE AIRLOCK; 09:20 MET CALL WARD 6A BED 8; 11:31 MET CALL WARD 3DR BED 14; 11:32 CANCELLED MET CALL WARD 3DR BED 14; 11:35 NEONATAL MET CALL THEATRE 2; 13:09 NEONATAL MET CALL BIRTH SUITES 5                                                                                                                                     | 229, 230 (not admitted); Tab 31; 268             |
| 18 Mar, after 14:00                                | Five further codes: 14:38 MET CALL WARD 3DR BED 11; 14:45 and 14:55 CODE GREY QAS TRIAGE; 19:15 and 19:34 CODE GREY ED QAS RAMP                                                                                                                                                                                                                                      | Tab 31                                           |
| Home, March 2024                                   | Unit 12304, 3113 Surfers Paradise Boulevard, Surfers Paradise QLD 4217, as printed on the Appellant's pay advices of 13 March 2024 and 27 March 2024                                                                                                                                                                                                                 | Respondent's disclosure, July 2025 (pay advices) |
| The drive                                          | To Logan Hospital, 5 University Drive, Meadowbrook: about 54 km and about 45 minutes each way in free-flowing traffic, via the Pacific Motorway (M1)                                                                                                                                                                                                                 | Appellant's material (OpenStreetMap route)       |
| Roadworks on the route                             | The M1 Pimpama (Exit 49) interchange upgrade was under construction from 2022 to late 2024. The Department of Transport and Main Roads advised in March 2024 that during construction there may be "temporary changes like altered speed limits, detours". The Coomera Connector Stage 1 North, beside the M1 at Coomera, was under construction from early 2023     | Appellant's material (TMR, March 2024)           |
| Time at home                                       | Finishing at 23:00 and starting at 06:00, with about 45 minutes' driving each way: home at about 23:45 at the earliest, leaving at about 05:15 at the latest, so at most about 5 hours 30 minutes at home before handover, parking and preparation. The Appellant's account, recorded by the Review Unit: with travel, the break "would have been less than 5 hours" | 284; 251; Appellant's material                   |
| 19 Mar 2024                                        | Sick leave, 7.6 hours, approved                                                                                                                                                                                                                                                                                                                                      | 235                                              |

### 5.3 The request, the response, and what followed

| When                | What the admitted record shows                                                                                                                                                                                        | Facts           | Interval                                                 |
|---------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|----------------------------------------------------------|
| 8 Apr 2024          | The Appellant asks Ms Taylor to review his pay for 8 to 31 March 2024, citing the 10-hour minimum                                                                                                                     | 242, 243        |                                                          |
| 9 Apr 2024          | Ms Taylor escalates the fatigue leave enquiry to Human Resources, and asks him to raise concerns as soon as they arise                                                                                                | 244, 245        |                                                          |
| 24 Apr 2024         | The Appellant: "more than 2 weeks without any response or overtime payment"                                                                                                                                           | 246             | No response alleged between 9 April and 1 May (fact 250) |
| 1 May 2024          | Ms Taylor: after consulting payroll and Human Resources, the fatigue payment "would not be processed due to the existing 8-hour agreement"; "you are able to terminate this agreement going forward"                  | 247, 248        | 23 days after the request (fact 249)                     |
| 1 May 2024, 1:18 pm | The Appellant sends Ms Reese the fatigue toolkit in the Operations Manual                                                                                                                                             | 214             |                                                          |
| 10 May 2024         | Ms Reese to Human Resources: his concern is "how it is impacting on staff fatigue, or more specifically his fatigue"; the roster risk rating is "at best... 11 which is moderate"                                     | 218, 219        |                                                          |
| 20 May 2024         | Ms Reese follows up with Human Resources, attaching the Fatigue Risk Management Systems guideline                                                                                                                     | 222, 223        |                                                          |
| 24 Oct 2024         | The Respondent's Review Unit: "uncertainty" whether the agreement applied; the rostering "amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement" | 254, 260        |                                                          |
| To 30 Jun 2024      | No fatigue risk assessment, training or implementation at the Switchboard is alleged. The Chief Executive: the assessment "occurred after 30 June 2024"                                                               | 264, 269 to 271 |                                                          |

|    | Question for the Respondent                                                                                                                                                           | The admitted record                                                                                                                                                                                                                                                                                                                                                                                                                               |
|----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 12 | Does the Respondent maintain that the 2020 eight-hour agreement applied to the shifts of 17 and 18 March 2024 (SOFC [22(e)]; outlines of Ms Taylor, Ms Reese and Ms Wright)?          | Section 5.1. No swap is alleged (fact 234); Human Resources limits the agreement to staff-initiated swaps (fact 225). The break was seven hours, less than eight on any view (facts 258, 259, 284)                                                                                                                                                                                                                                                |
| 13 | Does the Respondent maintain that the break was "not intentional or repeated" in the sense that no other rostering error affected the Appellant (SOFC [22(a)]; outline of Ms Taylor)? | Ms Reese, 7 August 2023: "a rostering error that was accidentally made by Chloe with regards to night shifts" (fact 287). Ms Taylor, 7 August 2023: "this was an oversight" (fact 156). Ms Reese, 26 April 2024: Ms Taylor "was working to fix this error" (facts 211, 212). Ms Reese to Human Resources, 10 May 2024: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters" (fact 220) |
| 14 | On what basis does the Respondent say the fatigue payment for 18 March 2024 was declined: the 2020 agreement, or clause 18.10 of the Award?                                           | The reason given on 1 May 2024 was "the existing 8-hour agreement" (fact 247). SOFC [24(b)] pleads clause 18.10, "because he was not performing overtime" (fact 237). Payroll, 3 May 2024, of the fortnight of 18 March 2024: it "has too many ordinary shifts... as one of the shifts needs to be overtime" (fact 188)                                                                                                                           |
| 15 | Which management action does the Respondent say was reasonable in respect of the break, the 23-day response, and the advice that the agreement could be terminated "going forward"?   | The Review Unit found the rostering "unreasonable management action" (fact 260). Payroll's advice, in the outline of Ms Wright: "a rostering practice issue for the line manager". The advice that the agreement could be terminated "going forward" (fact 248). SOFC [27] identifies no action (fact 303)                                                                                                                                        |

### 6. The Respondent's settled position under section 32(5): each action, and the course

SOFC [27] contends that any management action involved in the causation of any injury was reasonable management action taken in a reasonable way. It does not identify the action relied on (fact 303). As particulars of that contention, the Respondent is asked to state its settled position on each action below, separately: whether it says the action was management action, and, if so, whether it says the action was reasonable and taken in a reasonable way. Where the answer is yes to both, the Respondent is asked to identify the facts relied on. Row L asks the same questions of the course of conduct that the actions at rows A to E, J and K form when taken together.

|   | Stressor | Action (admitted facts)                                                                                                                                         | Management action? (yes / no) | Reasonable and taken in a reasonable way? (yes / no) |
|---|----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|------------------------------------------------------|
| A | 1(a)     | Removal of database access from all Switchboard staff, and of the "Contact & Number Changes" book, 18 July 2023, without restoration alleged (facts 40, 45, 55) |                               |                                                      |
| B | 1(a)     | Changes routed only through Ms Stibbard or Ms Taylor, with after-hours requests to "wait until either Chloe or myself are back" (facts 41 to 44)                |                               |                                                      |
| C | 1(a)     | The after-hours on-call process "effective from today", 15 April 2024 (facts 49 to 52, 180, 181)                                                                |                               |                                                      |

|   | Stressor | Action (admitted facts)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Management action? (yes / no) | Reasonable and taken in a reasonable way? (yes / no) |
|---|----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|------------------------------------------------------|
| D | 1(a)     | The response to the MASPER Registrar's reports of 3 and 8 May 2024 (facts 56 to 69)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                               |                                                      |
| E | 1(a)     | The response to the Integrated Respiratory Service, 15 to 20 May 2024 (facts 89 to 110)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                               |                                                      |
| F | 1(b)     | Removal of the Communication Book entry, June 2023 (facts 143 to 147)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                               |                                                      |
| G | 1(d)     | The handling of the Special Pandemic Leave application from 20 February to 1 March 2024, taken as a whole: four requests, three myHR submissions, two declines, approval after 10 days 4 hours 40 minutes (facts 114 to 142; SOFC [14])                                                                                                                                                                                                                                                                                                                                                          |                               |                                                      |
| H | 1(f)     | The request of 15 May 2024 that the Appellant retract his email (facts 74 to 79)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                               |                                                      |
| I | 2(b)     | The handling of the pay corrections from 8 April to 28 May 2024, taken as a whole: the AVAC submitted 25 days after payroll's instruction and 50 days after the request, "Part Completed" (facts 183 to 210, 242, 297)                                                                                                                                                                                                                                                                                                                                                                           |                               |                                                      |
| J | 3        | The rostering of 17 and 18 March 2024 with a seven-hour break. The Respondent's review decision found it "unreasonable management action" (facts 226, 258 to 260, 284)                                                                                                                                                                                                                                                                                                                                                                                                                           |                               |                                                      |
| K | 3        | The response of 1 May 2024 declining the fatigue payment, 23 days after the request, and the advice that the agreement could be terminated "going forward" (facts 242 to 250)                                                                                                                                                                                                                                                                                                                                                                                                                    |                               |                                                      |
| L | 1(a), 3  | <b>The course of conduct, taken together:</b> responsibility for the database, the distribution of emergency notifications and continuous 24-hour shift work (facts 2, 6, 8, 13); database access removed from 18 July 2023 and not alleged to have been restored (facts 40, 55); the seven-hour break of 17 to 18 March 2024 and the response to the Appellant's request (facts 242 to 250, 284); other rostering errors on his line (facts 156, 211, 212, 220, 287); and no fatigue risk assessment, training or implementation at the Switchboard before 30 June 2024 (facts 264, 269 to 271) |                               |                                                      |

## 7. Response schedule for the Respondent

By 15 October 2026, for each question, the Respondent is asked to indicate whether the position is maintained or not maintained or, for questions 3, 5, 6, 14 and 15, to answer it. A matter not maintained can be recorded at the conference as no longer in issue.

| Q  | Matter                                                                                                          | Respondent's position |
|----|-----------------------------------------------------------------------------------------------------------------|-----------------------|
| 1  | Directives issued without consultation or assessment (SOFC [11])                                                |                       |
| 2  | Non-admission of Stressor 1(a) (SOFC [11])                                                                      |                       |
| 3  | Action taken on the reports of 3, 8, 15 and 20 May 2024 before 2:05 pm on 20 May, and the document recording it |                       |
| 4  | Reliance on "no 'consequential' changes to operating procedures" (fact 266)                                     |                       |
| 5  | The location and production of the Communication Book                                                           |                       |
| 6  | The delegate who decided the Special Pandemic Leave application (SOFC [14])                                     |                       |
| 7  | The Special Pandemic Leave sequence, taken as a whole, as not unreasonable management action (SOFC [14])        |                       |
| 8  | The on-call notification process, 13 to 15 May 2024 (SOFC [16(b)])                                              |                       |
| 9  | The Appellant's email of 15 May 2024 as an accusation (outline of Ms Reese)                                     |                       |
| 10 | Pay errors "remedied in a timely manner"; no outstanding underpayments (SOFC [20])                              |                       |
| 11 | The pay corrections, 8 April to 28 May 2024, taken as a whole, as reasonable (SOFC [20], [21])                  |                       |
| 12 | Application of the 2020 eight-hour agreement to 17 and 18 March 2024 (SOFC [22(e)])                             |                       |
| 13 | The break as "not intentional or repeated" (SOFC [22(a)])                                                       |                       |
| 14 | The basis on which the fatigue payment was declined: the agreement or clause 18.10 (SOFC [24(b)])               |                       |
| 15 | The management action said to be reasonable in Stressor 3 (SOFC [27])                                           |                       |

#### **8. The Appellant's position**

On the admitted record, the Appellant considers that the primary facts are settled and that the matters remaining are the application of the law to those facts and the medical evidence. The Appellant invites the Respondent to consider its position on the admitted record. Where a position is maintained, the Appellant will address it at any hearing by reference to the admitted facts identified in this paper. If the matter does not resolve, the Appellant is ready to proceed to a hearing on the issues that remain. The Appellant leaves to the Commission how the matter should proceed once the Respondent has responded.

A handwritten signature in black ink, appearing to read 'Cory Lea Shepherd', with a stylized, cursive script.

**Cory Lea Shepherd**  
Appellant, self-represented